Inder Singh vs State (Cbi) on 14 July, 2011

Author: Mukta Gupta

Bench: Mukta Gupta

* IN THE HIGH COURT OF DELHI AT NEW DELHI

% Decided on: 14th July, 2011

\+ CRL.A. 90/1994

G.L. CHAWLA ..... Appellant

Through: Mr. K.K. Sood, Senior Advocate with Mr. Pankaj Baghla and Mr. Sanchit Dhawan, Advocates.

Versus

STATE (CBI) ..... Respondent

Through: Mr. Narender Mann, Standing Counsel for CBI.

AND

\+ CRL.A. 98/1994

INDER SINGH ..... Appellant

Through: Mr. Anurag Jain, Advocate.

Versus

STATE (CBI) ..... Respondent

Through: Mr. Narender Mann, Standing Counsel for CBI.

AND

\+ CRL.A. 99/1994

M.K. GHOSH ..... Appellant

Through: Mr. S.S. Gandhi, Sr. Advocate with Mr. Abhishek Rai, Advocate

Versus

STATE (CBI) ..... Respondent

Through: Mr. Narender Mann, Standing Counsel for CBI.

Coram:

HON'BLE MS. JUSTICE MUKTA GUPTA

1. Whether the Reporters of local papers may be allowed to see the judgment?	Not Necessary
2. To be referred to Reporter or not?	Yes
3. Whether the judgment should be reported in the Digest?	Yes

MUKTA GUPTA, J.

1. These appeals arise out of a common impugned judgment dated 4 th March, 1994 whereby the Appellants were convicted for offences punishable under Section 120B, read with Section 420 IPC and Section 5 (2) read with Section 5 (1) (d) of the Prevention of Corruption Act, 1947 (in short the „POC Act) and for substantive offences punishable under Section 420 IPC and under Section 5(2) read with Section 5 (1) (d) of the POC Act and the order on sentence dated 4th April, 1994 whereby they were directed to undergo Rigorous Imprisonment for six months and a fine of `50,000/- and in default of payment of fine to further undergo Simple Imprisonment for six months for offence punishable under Section 120B read with Section 420 IPC and 5 (2) read with Section 5 (1) (d) of the POC Act; Rigorous Imprisonment for six months and a fine of `50,000 each and in default of payment of fine to further undergo simple imprisonment for six months for offence punishable under Section 420 IPC and RI for one year and a fine of `1 lakh each and in default of payment of fine further simple imprisonment for one year for offence punishable under Section5 (2) read with Section 5 (1) (d) of the POC Act in Complaint case No. 64/1991.

2. Along with the Appellants one Shri S.K. Gambhir, Assistant Divisional Engineer was also convicted however, the appeal being Crl. Appeal No. 85/94 filed by him has abated as he expired during the pendency of the appeal.

3. Briefly the prosecution case is that during March, 1974 to August, 1974, Shri M.K. Ghosh-Divisional Engineer (Telephones), Shri S.K. Gambhir-Assistant Divisional Engineer (Telephone), Shri G.L.Ghawla and Shri Inder Singh-Technicians were working in the Equipments Installation Division, Delhi Telephones, New Delhi. While working as above they entered into a criminal conspiracy with the object to commit the offences of cheating and criminal misconduct by abusing their position as public servants. In pursuance of the said criminal conspiracy, the said Shri S.K. Gambhir prepared 13 unauthorized indents (Ex. PA, Ex. PB, Ex. PC, Ex. PD, Ex. PE, Ex. PF, Ex. PG and Ex. PH-1, Ex. PH-2, Ex. PH-3, Ex. PH-4, Ex. PH-5, and Ex. PH-6) for the supply of

underground cables, quoting the numbers of certain sanctioned estimates and also recorded certificates thereon to the effect that the funds were available and that the estimates had been sanctioned by the competent authority and signed the same as Indenting Officer. There was no provision of underground telephone cables in those estimates. Further in pursuance of the aforesaid criminal conspiracy Shri M.K. Ghosh approved/counter signed all the aforesaid 13 unauthorized indents prepared by Shri Gambhir.

4. On the basis of the aforesaid 13 authorized indents, underground telephone cables measuring about 43,000 meters were issued by Ganpat Ram PW-19 from the circle stores depot at Netaji Nagar and Eastern Courts and the entries were made in the Store Register (Ex. PW 19/A) maintained by him at the store.

5. In pursuance of the criminal conspiracy Shri G.L. Chawla and Shri Inder Singh, made request to Shri Ganpat Ram PW-19, by way of 14 requisition slips requesting therein the issue of various lengths of underground cables falsely showing the issuance and consumption of the said materials in the Government work at Delhi University Campus and at Lok Sabha. Shri S.K. Gambhir passed orders for issue of underground cables on the said requisition slips. The underground cables were issued by PW19 to Shri G.L. Chawla on the Requisition slips Ex. PW14/DA-10 to Ex. PW14/DA-14 and Shri Inder Singh on the Requisition slips Ex. PW14/DA-1 to Ex. PW14/DA-

14. The cables were received and acknowledged on the said requisition slips by Shri G.L. Chawla and Shri Inder Singh.

6. The aforesaid cables were not used at Delhi University Campus, Lok Sabha or in any other Government work. Thereafter, the underground telephone cables so issued on the basis of 13 unauthorized indents were otherwise disposed of/not accounted for, by the above said convicts, obtaining pecuniary advantage for themselves by misappropriating the same.

7. When there illegal activities came to the notice of the higher authorities, M.K. Ghosh, S.K. Gambhir and Inder Singh in order to cover up their acts of misconduct and cheating, arranged the labourers of the Cables Division, who were already at work at Raj Ghat and got laid about 1000 meters of underground cables in the Delhi University Campus, where it was not at all required. When they were hurriedly getting laid the cables at Delhi University area in order to show the consumption of the cables issued to them, the Deputy General Manager along with some officials of the Vigilance Section of the Delhi Telephones Department raided the area and detected the fraud.

8. These appeals are required to be considered as per the law laid down by the Hon ble Supreme Court in State through Superintendent of Police, CBI/SIT v. Nalini and Ors. others, 1999 (5) SCC 235 as regards the criminal conspiracy to commit an offence, wherein the Hon ble Supreme Court summarized the broad principles governing the law of conspiracy.

> "591. Some of the broad principles governing the law of conspiracy may be summarized though, as the name implies, a summary cannot be exhaustive of the principles.

1. Under Section 120A IPC offence of criminal conspiracy is committed when two or more persons agree to do or cause to be done an illegal act or legal act by illegal means. When it is legal act by illegal means overt act is necessary. Offence of criminal conspiracy is exception to the general law where intent alone does not constitute crime. It is intention to commit crime and joining hands with persons having the same intention. Not only the intention but there has to be agreement to carry out the object of the intention, which is an offence. The question for consideration in a case is did all the accused had the intention and did they agree that the crime be committed. It would not be enough for the offence of conspiracy when some of the accused merely entertained a wish, howsoever, horrendous it may be, that offence be committed.

2. Acts subsequent to the achieving of object of conspiracy may tend to prove that a particular accused was party to the conspiracy. Once the object of conspiracy has been achieved, any subsequent act, which may be unlawful, would not make the accused a part of the conspiracy like giving shelter to an absconder.

3. Conspiracy is hatched in private or in secrecy. It is rarely possible to establish a conspiracy by direct evidence. Usually, both the existence of the conspiracy and its objects have to be inferred from the circumstances and the conduct of the accused.

4. Conspirators may, for example, be enrolled in a chain - A enrolling B, B enrolling C, and so on; and all will be members of a single conspiracy if they so intend and agree, even though each member knows only the person who enrolled him and the person whom he enrolls. There may be a kind of umbrella- spoke enrollment, where a single person at the center doing the enrolling and all the other members being unknown to each other, though they know that there are to be other members. These are theories and in practice it may be difficult to tell whether the conspiracy in a particular case falls into which category. It may, however, even overlap. But then there has to be present mutual interest. Persons may be members of single conspiracy even though each is ignorant of the identity of many others who may have diverse role to play. It is not a part of the crime of conspiracy that all the conspirators need to agree to play the same or an active role.

5. When two or more persons agree to commit a crime of conspiracy, then regardless of making or considering any plans for its commission, and despite the fact that no step is taken by any such person to carry out their common purpose, a crime is committed by each and every one who joins in the agreement. There has thus to be two conspirators and there may be more than that. To prove the charge of conspiracy it is not necessary that intended crime was committed or not. If committed it may further help prosecution to prove the charge of conspiracy.

6. It is not necessary that all conspirators should agree to the common purpose at the same time. They may join with other conspirators at any time before the

consummation of the intended objective, and all are equally responsible. What part each conspirator is to play may not be known to everyone or the fact as to when a conspirator joined the conspiracy and when he left.

7. A charge of conspiracy may prejudice the accused because it is forced them into a joint trial and the court may consider the entire mass of evidence against every accused. Prosecution has to produce evidence not only to show that each of the accused has knowledge of object of conspiracy but also of the agreement. In the charge of conspiracy court has to guard itself against the danger of unfairness to the accused. Introduction of evidence against some may result in the conviction of all, which is to be avoided. By means of evidence in conspiracy, which is otherwise inadmissible in the trial of any other substantive offence prosecution tries to implicate the accused not only in the conspiracy itself but also in the substantive crime of the alleged conspirators. There is always difficulty in tracing the precise contribution of each member of the conspiracy but then there has to be cogent and convincing evidence against each one of the accused charged with the offence of conspiracy. As observed by Judge Learned Hand that "this distinction is important today when many prosecutors seek to sweep within the dragnet of conspiracy all those who have been associated in any degree whatever with the main offenders".

8. As stated above it is the unlawful agreement and not its accomplishment, which is the gist or essence of the crime of conspiracy. Offence of criminal conspiracy is complete even though there is no agreement as to the means by which the purpose is to be accomplished. It is the unlawful agreement, which is the graham of the crime of conspiracy. The unlawful agreement which amounts to a conspiracy need not be formal or express, but may be inherent in and inferred from the circumstances, especially declarations, acts, and conduct of the conspirators. The agreement need not be entered into by all the parties to it at the same time, but may be reached by successive actions evidencing their joining of the conspiracy.

9. It has been said that a criminal conspiracy is a partnership in crime, and that there is in each conspiracy a joint or mutual agency for the prosecution of a common plan. Thus, if two or more persons enter into a conspiracy, any act done by any of them pursuant to the agreement is in contemplation of law, the act of each of them and they are jointly responsible therefore. This means that everything said, written or done by any of the conspirators in execution or furtherance of the common purpose is deemed to have been said, done, or written by each of them. And this joint responsibility extends not only to what is done by any of the conspirators pursuant to the original agreement but also to collateral acts incident to and growing out of the original purpose. A conspirator is not responsible, however, for acts done by a co-conspirator after termination of the conspiracy. The joinder of a conspiracy by a new member does not create a new conspiracy nor does it change the status of the other conspirators, and the mere fact that conspirators individually or in groups perform different tasks to a common end does not split up a conspiracy into several different conspiracies.

10. A man may join a conspiracy by word or by deed.

However, criminal responsibility for a conspiracy requires more than a merely passive attitude towards an existing conspiracy. One who commits an overt act with knowledge of the conspiracy is guilty. And one who tacitly consents to the object of a conspiracy and goes along with other conspirators, actually standing by while the others put the conspiracy into effect, is guilty though he intends to take no active part in the crime."

M.K. GHOSH:

> 9. Learned counsel for the Appellant challenging the conviction contends that the Appellant has no role in the entire episode and he is not a conspirator to the crime. Each department/division does its own work. The plans are prepared by the planning department where after the estimates are sent to the different divisions for execution, which may be sent to a sub-division. Each sub division is headed by Assistant Divisional Engineer and in this case the Assistant Divisional Engineer was S.K. Gambhir. S.K. Gambhir was the person who was given the Hollerith Number (HC) a code number of the person who is competent to counter sign. Unless this HC number holder signs and gives his HC number on the indent, the central store will not release the material. Both the Eastern Court and the Lok Sabha Annexe stores were under S.K. Gambhir, the Assistant Divisional Engineer and thus the sub-

divisional in charge. He prepared the estimates and had the necessary approvals from the planning department. Since the Appellant M.K. Ghosh was the HC holder number he only counter signed the 13 indents were delivered from central store from where the material was sent to the sub- divisional store. Thus the allegedly misappropriated underground cables never went out of the stores and they were only transferred from the central store to the sub-divisional store but remained in the government custody and hence no case for misappropriation is made out. There is no allegation against the Appellant that he prepared the requisition slips to draw the cables from the sub-division stores at the Parliament Annexe which was under the charge of S.K. Gambhir. There is no evidence on record that the Appellant had any role either in requisitioning the material from the sub-division store or unauthorizedly laying thousand meter cable in the Delhi University nor was the delivery of the cables taken by the Appellant. Moreover, no witness stated that the Appellant was present when cables were being laid at the Delhi University. The Appellant was only a counter signing authority and he only counter signed the indent. S.K. Gambhir who was the indenting officer prepared the indents after obtaining all the sanctions and signing the same. PW6 in his cross-examination has admitted that there is no statutory restriction and even the Additional General Manager may allow DE installation to take up laying of underground cables. PW6 has given instance of another officer doing the same. Neither any case for misappropriation is made out nor an offence punishable under the POC act is made out against the Appellant as the prosecution has not been able to show that the Appellant sold the cables outside. At best an offence under section 5 (1) (d) of the POC Act can be said to be made out. However, no presumption under section 4 of the said Act is available and thus the prosecution has to prove the said offence by leading positive evidence beyond reasonable doubt against the Appellant.

10. Learned counsel for CBI states that the Appellant M.K. Ghosh was part of the conspiracy and was in active connivance to misappropriate 43 thousand meters of underground telephone cables. Thus, a case of cheating and misconduct by abusing this position as a public servant is clearly proved by the prosecution. Learned counsel for the CBI relies on the following circumstances against him:

i. Shri M.K. Ghsoh is a technical person from the Telegraphs Engineering Services and was the Divisional Engineer (Telephones) in the Equipments Installation Division, Delhi Telephones, New Delhi. Being a technical person he would know the nature of the cables and that the indents pertain to the underground cables.

ii. It was within the knowledge of Shri M.K. Ghosh that the Officers-in-

charge of the Equipment installation were not required to deal with underground cable because the work of laying cables is the responsibility of the D.E.T (Cable Construction and Maintenance).

iii. That the indents clearly indicate that those were for the under ground cables. That Shri M.K. Ghosh having knowing that the cable sought to be issued were underground cables and not required by the installation division, intentionally countersigned/forwarded all the 13 unauthorised indents prepared by Shri S.K. Gambhir and thereby facilitated the issuance of the underground Telephones Cables from the store depot.

iv. That Hollerith Code No. 0459 was allotted to him, which is like a Bank Account and stores can be drawn by the holder of the Hollerith Code Number.

That despite knowing that the stores can be issued only to the holder of the Hollerith Code, allowed S.K. Gambhir to initiate the unauthorized indents and forwarded the same.

v. Shri M.K. Ghosh was the head of the department and did not verify the authenticity of the indents, the sanctioned estimates and the certificates to the indents and instead countersigned/forwarded the same. He did not verify that there was no provision of underground telephone cables in the sanctioned estimates. He did not verify that the certificates to the indents that funds were available and that the estimates had been sanctioned by the competent authority. PW5 Amrit Lal has stated that one copy of the estimate in sent to the office of the Divisional Engineer.

vi. That Shri M.K. Ghosh was the in charge of the entire division and the work of this division was only installation of instruments inside the telephone exchanges and not laying cable. The entire NCR Delhi Faridabad Ghaziabad was under M.K. Ghosh and S.K. Gambhir was Assistant Divisional Engineer below him.

vii. That when the misappropriation came to the knowledge of the higher authorities he actively assisted other convicts to cover up the Criminal misconduct and actively participated by arranging the labourers from Raj Ghat for laying cables at Delhi University area. It is also important that there were no sanctioned estimates in respect of laying cables in Delhi University area.

viii. That no written orders were either produced by Shri M.K. Ghosh or Mr. S.K. Gambhir, directing them to lay underground cables, nor any such orders were available on record in the Delhi Telephones. That no written order directing them to lay underground cables either produced or found in Delhi Telephone.

ix. Initially Mr. Ghosh denied his signatures on the indents. He even denied the knowledge about these cables transaction and movement of cables contrary to the rules.

x. That Shri Inder Singh informed PW4 and PW6 that the cables were being laid there according to the instruction of Mr. M.K. Ghosh. He did not initiate any action against his subordinate for having misappropriated the underground cables.

11. Thus from a perusal of the evidence it is clear that the Appellant was party to the conspiracy. The Appellant was division-in-charge, Telephone Equipments Division. PW4 C. Krishnamurti has clearly stated that Mr. M.K. Ghosh was working in the installation Division & that division was not concerned with the installation/use of underground cables. PW5 in his cross- examination has stated that he was the Divisional Engineer, Cable Construction and he was aware of the works being executed under his control and there was no such work as mentioned in the indent shown to him which required underground cables. PW7 V.K. Kutar has stated that all the named works given in any of the indent did not relate to the cable construction North Division. He has further stated that the Installation Division does not carry out the work of laying underground cables. This fact has been also stated by PW9 B.L. Sethi that the officer who deal with the installation do not deal with laying on underground cables. Thus there is overwhelming evidence on record which shows that the Appellant who was the head of the equipments, Installation Division as Divisional Engineer was not in-charge or responsible for laying down underground cables. The Appellant again washes away his hands by contending that he merely counter signed the indent prepared by Shri S.K. Gambhir. While counter signing it is the responsibility of the concerned authority i.e. Shri M.K. Ghosh on the present case to check the legality of the document being signed. PW5 has stated that a copy of the estimate was sent to the Divisional Engineer. Thus he had all the opportunity to verify the same. He was duty bound to verify the estimates before signing. PW5 stated that he had signed nine indents PE to PG and PH-1 to PH-6. He has stated that the underground cables intended in these indents did not relate to the estimates of this work as estimate pertained to the equipment installation. He further states that proof of copies of the estimates are prepared and one of the copies is also sent to the division concerned. Thus, the Appellant was aware of the fact that the estimate pertained to the equipments installation whereas he was signing on indents relating to underground cables. PW3 Rangarajan has further stated that the Divisional Engineer can counter sign, modify or reject the indents. Thus, it is the Divisional Engineer who has to act and apply its own mind even if

subordinates have prepared incorrect documents. PW3 in his testimony has stated that the estimates Exhibit PW3/A was signed and approved by him and in the said estimates there was no requirement of underground cables installation. PW8 S Roy has stated that estimates forwarded vide forwarding note Exhibit PW8/A contains no requirement of any underground cables. Thus, none of the estimates provided were for the underground cables however, indents were prepared by S.K. Gambhir regarding underground cables which were duly approved by M.K. Ghosh on the basis of which the material were withdrawn from the central store illegally amounting to misconduct and abuse of position by corrupt means. It has been further proved by the testimony of PW1, PW2, PW3, PW5 that no work was done as claimed in the indents PA to PC, PD to PF, PG and Exhibit PH1 to PH6. Though 43 thousand meters underground cables were withdrawn from the central stores however, the same were not laid. Moreover, the conduct of the Appellant that when misappropriation came to the knowledge of the senior officer, the Appellant actively assisted other convicts to cover up the illegal acts and got started laying cables at Delhi University by arranging labourers from Raj Ghat is also relevant. The evidence of PW16, PW17 and PW4 in this regard is material which implicates the Appellant. Further PW4 has stated that on verification they found out that there was no estimate in respect of laying cables in the university area. PW27 A A Khan has further stated that no written orders were produced by M.K. Ghosh or S.K. Gambhir directing them to lay underground cables nor any such order was available on record in the Delhi Telephones.

12. Thus, I find that the prosecution has proved the case beyond reasonable doubt for offences charged against the Appellant.

INDER SINGH:

13. Learned counsel for the Appellant contends that the Appellant was neither the Indenting Officer nor had any administrative authority. He was only working as a subordinate to S.K. Gambir and was doing the duties as directed by him. It is stated that the prosecution has proved two circumstances against the Appellant firstly, that the Appellant along with G.L. Chawla prepared requisition slips Exhibit PW14/DA-1 to Exhibit PW14/DA- 14 and secondly, that he was found present at the Delhi University where the underground cables were being laid when PW4 Shri C Krishnamurti visited the site. Even as per the prosecution case the Appellant joined the conspiracy at a later stage and thus, in fact, as per the evidence on record the acts alleged against the Appellant may at best be a cover up exercise. He has estimated that these records were prepared later on to regularize the same. The Appellant in his statement under Section 313 Cr.P.C. stated that he had signed the requisition slips on the dictate of his senior officer. Such an act cannot be termed as a criminal conspiracy as there is no meeting of mind. The second circumstance against the appellant of being present at the site is not incriminating in nature. PW4 has stated that the cables were being laid at the instance of M.K. Ghosh. So at the first available opportunity the Appellant has proved his innocence. The prosecution has led no evidence that the Appellant misappropriated the cables or that he obtained pecuniary gains for himself. The mere presence of the Appellant at the spot cannot bring him within the purview of criminal conspiracy. As per the testimony of PW16 he had thus, actually seen that the work was done and in view of this overseeing of the work it could not be said that the Appellant misconducted. No material has been recovered from the possession of the Appellant. Even the testimony of PW6, PW16 and PW17 does not implicate the Appellant. PW19 Ganpat Ram in his

testimony has admitted that in July-August new books of accounts are prepared however, he made entries in the new books of account in spite of the old books of accounts and thus, Ganpat Ram was actively involved with Shri Gambhir however, he has been cited as a witness. The defence of the Appellant is probable and hence he is entitled to the benefit of doubt. The evidence of PW19 is highly doubtful, suspicious and not reliable and in view of this testimony the defence of the Appellant is probable. Even though the testimony of hostile witness can be looked into however, the same should inspire confidence. The Trial Court itself has observed that PW19 is not a reliable witness.

14. Learned counsel for the CBI on the other hand states that the goods were got released from the store by Inder Singh on the basis of the requisition slips from PW19. If he had not played active role and issued the requisition slips, the goods would not have been released from the store. His role is not only of conspiracy but he has also been convicted substantively for offence of cheating and criminal misconduct. If he had not participated in the conspiracy the offence would not have been committed. He got issued material from the store on the basis of four requisition slips Ex.PW14/DA-1 to Ex.PW14/DA-

10. The requisition slips were forwarded by S.K. Gambhir and the material was accepted by Inder Singh from the store. PW19 Ganpat Ram has proved the entry in the store register Ex. PW19/A regarding issue of the material to him. He failed to account for the material got issued to him from the store. Shri Inder Singh was an experienced employee and has been withdrawing the material from the stores in regular course. He understands his responsibility of issuing the requisition slips and acceptance of the material from the store in charge. Being a seasoned technical person he would know the consequences of issuing the requisition slips. When the misappropriation came to the knowledge of the higher authorities he actively assisted other convicts to cover up the illegal acts, and actively participated in arranging the labourers from Raj Ghat for laying cables at Delhi University area and he was also found supervising the work at Delhi University. The underground cable measuring about 8000 meters was recovered from Delhi University in the presence of Inder Singh, PW-4, PW6, PW16 and PW17.

15. On a perusal of the testimony of the witnesses and the law laid down in the State vs. Nalini (supra) it is clear that a case of conspiracy is proved. Their Lordships held that people may join even at a later stage of the conspiracy for a limited purpose and thus may not even be aware of the entire conspiracy, none the less they are conspirators and liable for offence committed by each of the conspirator.

16. Even though no role has been assigned to the Appellant at the time of preparing of the indent and the release of the material from the central store to the stores at Parliament Annexe, Sub-Division, however, the Appellant has actively participated in preparing the requisition slips on the basis of which materials were withdrawn from the sub-division store and have not been accounted for and thus they are misappropriated. When the entire incident came to light and inspection was carried out by PW4, the Appellant was getting the underground cables laid from the workers brought from the Raj Ghat thus, it could not be said that the Appellant had no role in the conspiracy or that he was not an active participant.

17. Thus I find no illegality in the impugned judgment convicting the Appellant.

G.L. CHAWLA:

18. Learned counsel for the Appellant contends that the prime accused in this case, that is, Ganpat Ram has not been made an accused and convicted . He has been cited as a witness and the Appellant is sought to be convicted on the testimony of such a witness. The role of the Appellant at best is of preparing four requisition slips after the date of alleged conspiracy. There is no finding of the Trial Court that the delivery of the articles on the basis of requisition slips from the stores at Parliament Annexe was taken by the Appellant. The charge framed against the Appellant is wholly defective. Section 420 IPC has no link with Section 5 (1) (d) and Section 5 (2) of the POC Act. The charge goes even beyond the prosecution case and the sanction granted. The sanction for the prosecution granted is wholly defective. The sanction order is para materia the request by the CBI and thus there is no application of mind of the sanctioning authority.

19. The questions put to the Appellant are his defence and not the prosecution case. The defence of the Appellant being that these two persons, that is, Inder Singh, and G.L. Chalwa on the pointing out of Ganpat Ram, were requisitioned by the officer and since register of PW19 was incomplete they helped him in completing the same. In the statement under Section 313 Cr.P.C. the prosecution case has to be put up and not the defence of the Appellant. The question No. 65 put to the Appellant in his statement under Section 313 Cr.P.C. clearly escipates him. There is no finding by the learned Trial Court that the Appellant was a party of the conspiracy and the said finding has to be viewed in the light of Questions 52 and 65 put to the Appellant as there was nothing incriminating against the Appellant nothing was put to him in Section 313 Cr.P.C.

20. Learned counsel for the CBI states that the goods were released from the store by G.L. Chawla on the basis of requisition slip. If he had not played active role and issued the requisitions slips, the goods would not have been released from the store. His role is not only of conspiracy but he has also been convicted substantively for offence of cheating and Criminal Misconduct. He got issued material from the store on the basis of four requisition slips Ex. PW14/DA-10 to Ex.PW14/DA-14. The requisition slips were forwarded by S.K. Gambhir and the material was accepted by G.L. Chawla. PW19 Ganpat Ram has deposed and proved the entry in the store register Ex. PW19/A regarding issue of the material to him. He failed to account for the material got issued to him from the store. G.L. Chawla was an experienced employee and had been withdrawing the material from the stores in regular course. He had knowledge of his responsibility of issuing the requisition slips and acceptance of the material from the store incharge.

21. The role of the Appellant G.L. Chawla is para materia that of Inder Singh. He was a party to the conspiracy and facilitated the withdrawal of the material from the stores at Sub-Division, Parliament Annexe on the basis of requisition slips prepared. He further oversaw the laying down of the cables at the Delhi University. PW17 Babu Ram has deposed that he and PW16 went to University area and met Inder Singh and G.L. Chawla at the gate of University. The accused persons told them that a cable was to be laid in a particular area. Thus, the presence of accused G.L. Chawla at the spot is proved. As already discussed above, joining of person in a conspiracy at a later stage

does not absolve him from the crime committed. He did receive the material through PW19 Ganpat Ram. Therefore, it is clear that the accused is trying to take cover under the garb of innocence and ignorance whereas evidence against him is clear that he received the material from stores against the requisition slips in question Ex.PW14/DA-1 to Ex.PW14/DA-14.

22. On a perusal of the sanction order Ex. PW15/D and the testimony of PW15 Shri A.C. Sharma who has deposed that he had perused the sanction file which contained the report of CBI, advice of Central Vigilance Commission, comments of Post and Telegraph Department, noting of various officers etc., it is evident that while granting the sanction the officer Shri Hardam Lal also had gone through all the documents before him and applied his mind before granting the sanction. Therefore, there is no merit in the contention that sanction order suffers from non-application of mind.

23. As regards the contention that under Section 313 Cr.P.C. no question has been put to him and the questions put were the defence evidence and not the prosecution case. Section 313 Cr.P.C. explicitly provides that it is the incriminating evidence which comes during the trial that has to be put to the accused. The said incriminating evidence may be by way of either prosecution evidence or even in the form of confession of the accused. The purpose of Section 313 Cr.P.C. is to provide opportunity to accused to explain circumstances appearing against him. Hence an incriminating circumstance which is in the form of confession of the accused is also to be put to him while recording his statement under Section 313 Cr.P.C. In the present case, from a perusal of the statement of accused persons it is clear that all the incriminating circumstances against them were put to them and they had a fair opportunity to explain the same. Hence no prejudice is caused to accused persons.

24. Appeals are accordingly dismissed. The bail bond and the surety bonds are cancelled. The Appellants be taken into custody to undergo the remaining sentence.

(MUKTA GUPTA) JUDGE JULY 14, 2011 vn